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CORRECTIVE AMENDMENT TO THE  
DECLARATION OF CONDOMINIUM OF GATEHOUSE DOCK  
CONDOMINIUM ASSOCIATION, INC.

DAN  
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MONROE COUNTY

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FILED FOR RECORD

THIS CORRECTIVE AMENDMENT to the Declaration of Condominium ("Declaration") of GATEHOUSE DOCK CONDOMINIUM ASSOCIATION, INC., a Florida not-for-profit corporation (hereinafter referred to as ("Association")) is executed this 15th day of May, 1995.

R E C I T A L S

•WHEREAS, the Association has been established, in part, for the operation of Gatehouse Dock Condominium, a Condominium in accordance with the Declaration and related documents which were recorded in Official Records Book 972, Page 768, of the Public Records of Monroe County, Florida; and

•WHEREAS, Section 718.110(5), Florida Statutes, (the "Condominium Act") provides that the Board of Directors ("Board") may file an amendment to the Declaration where it appears that through a scrivener's error a unit has not been designated as owning an appropriate undivided share of the common elements or does not bear an appropriate share of the common expenses or that all the common expenses or interest in the common surplus or all of the common elements in the condominium have not been distributed in the declaration, so that the sum total of the shares of common elements which have been distributed or the sum total of the shares of the common expenses or ownership of common surplus fails to equal One Hundred Percent (100%); and

•WHEREAS, the Board discovered a scrivener's error in Exhibit "C" to the Declaration entitled "Schedule of Interest in Common Elements, Common Expenses and Common Surplus" regarding the total of the shares of common elements; and

WHEREAS, the sum total of the shares of the common elements reflected in Exhibit "C" to the Declaration does not equal One Hundred Percent (100%); and

WHEREAS, the Board upon a careful review of the above referenced Exhibit "C", discovered that the percentage interest assigned to Dock A-23 was .0336134; and

WHEREAS, the correct percentage interest which should have been assigned to Dock A-23 is .0420168 which is the percentage interest assigned to similarly sized Docks; and

WHEREAS, the total shares of the common elements equals One Hundred Percent (100%) when the appropriate percentage interest of .0420168 is assigned to Dock A-23; and

WHEREAS, the Condominium Act provides that the Board may approve an amendment to the Declaration to correct the percentage interests assigned to the Docks where a scrivener's error exists; and

WHEREAS, at a duly called meeting of the Board held on the 15th day of May, 1995, the Board approved the filing of an amendment to the Declaration which corrects the percentage interest assigned to Dock A-23;

NOW, THEREFORE, the Declaration is hereby amended as follows:

1. The foregoing recitals are true and correct and are incorporated herein by reference.
2. The correct percentage interest in the common elements assigned to Dock A-23 is set forth in the revised Exhibit "C" attached hereto.
3. All other terms and conditions set forth in the Declaration remain the same and in full force and effect.

IN WITNESS WHEREOF, the undersigned have hereunto set their hands and seals this 15th day of May, 1995.

WITNESSES:

Print Name: Jane Blair

Print Name: \_\_\_\_\_

GATEHOUSE DOCK CONDOMINIUM  
ASSOCIATION, INC.

BY: [Signature], President

BY: [Signature], Secretary

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STATE OF FLORIDA)

COUNTY OF MONROE)

The foregoing instrument was acknowledged before me this 15th day of May, 1995, by Robert Willesmann, Sr. and Robert A. Hirsch, as President and Secretary respectively, of GATEHOUSE DOCK CONDOMINIUM ASSOCIATION, INC., a Florida corporation, on behalf of the corporation. They (who are personally known to me)/(who have produced \_\_\_\_\_ as identification) and did take an oath.

Signature: Armando Vasquez Jr.  
Name:  
Title:  
Serial No.:  
My Commission Expires:



Prepared by:  
Maria Victoria Arias, Esq.  
SIEGFRIED, RIVERA, LERNER,  
DE LA TORRE & PETERSEN, P.A.  
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## EXHIBIT "C"

SCHEDULE OF INTEREST IN COMMON ELEMENTS,  
COMMON EXPENSES AND COMMON SURPLUS

| <u>DOCK</u> | <u>INTEREST</u> |
|-------------|-----------------|
| A-1         | .0420168        |
| A-2         | .0420168        |
| A-3         | .0420168        |
| A-4         | .0420168        |
| A-5         | .0420168        |
| A-6         | .0336134        |
| A-7         | .0336134        |
| A-8         | .0336134        |
| A-9         | .0336134        |
| A-10        | .0420168        |
| A-11        | .0336134        |
| A-12        | .0336134        |
| A-13        | .0336134        |
| A-14        | .0336134        |
| A-15        | .0420168        |
| A-16        | .0336134        |
| A-17        | .0336134        |
| A-18        | .0336134        |
| A-19        | .0336134        |
| A-20        | .0336134        |
| A-21        | .0336134        |
| A-22        | .0336134        |
| A-23        | .0420168        |
| A-24        | .0336134        |
| A-25        | .0336134        |
| A-26        | .0420168        |
| A-27        | .0252100        |
| A-28        | .0252100        |

.0420168 = 60  
.0336134 = 45  
.0252100 = 25

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STATE OF NEW YORK  
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